



LAW ON AMENDMENTS TO CERTAIN LAWS

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ARTICLE 1- In the first paragraph of Article 48 of the Law No. 6183 on the Procedure for Collection of Public Receivables dated 21/7/1953, the expression "36" has been amended as "72", and in its second paragraph the expression "fifty thousand New Turkish Liras" has been amended as "one million Turkish liras".

ARTICLE 2- The following paragraph has been added to Article 16 of the Inheritance and Transfer Tax Law No. 7338 dated 8/6/1959, to come after the second paragraph.

"For those benefiting from the income tax exemption under the repeated Article 20/D of the Income Tax Law No. 193 dated 31/12/1960, in the case of transfer by way of inheritance [...] occurring within the period prescribed for the said exemption, the tax rate shall be applied as 1%."

ARTICLE 3- In the first paragraph of Article 17 of the Income Tax Law No. 193 dated 31/12/1960, the expression "the amount" has been amended as "twice the amount", and in its second paragraph the expressions "three", "four", "six", "seven" and "twelve" have been amended respectively as "two", "three", "four", "five" and "six".

ARTICLE 4- The following article has been added to Law No. 193, to come after the repeated Article 20/C.

"Tax exemption for earnings and revenues obtained from abroad:

REPEATED ARTICLE 20/D- The earnings and revenues obtained outside Turkey by natural persons deemed to be settled in Turkey, provided that they had no domicile and no tax liability in Turkey during the last three calendar years prior to being deemed settled in Turkey, shall be exempt from income tax for twenty years.

The existence of a tax liability for the natural persons within the scope of the first paragraph, arising from real estate capital revenue, movable capital revenue or capital gains obtained in Turkey before falling within the scope of this article, shall not constitute an obstacle to benefiting from this exemption.

No annual declaration shall be filed for the earnings and revenues within the scope of the first paragraph, and in the event that a declaration is filed due to other income, these incomes shall not be included in the declaration.

Expenses and costs relating to the earnings and revenues within the scope of the exemption shall not be taken into account in determining taxable earnings and revenues.

Taxes paid in foreign countries due to the earnings and revenues within the scope of this exemption may not be deducted from the income tax assessed in Turkey.

In the event it is subsequently determined that the conditions relating to the exemption are not met, the taxes that were not accrued shall be deemed to have been lost (subjected to tax loss).

The Ministry of Treasury and Finance is authorized to determine the procedures and principles relating to the application of this article."

ARTICLE 5- The following subparagraph has been added to the first paragraph of Article 23 of Law No. 193.

"20. The portion of the wages of qualified service personnel employed in qualified service centers defined in the supplementary Article 1 of the Foreign Direct Investment Law No. 4875 dated 5/6/2003, not exceeding three times the gross minimum wage (this shall be applied as five times the gross minimum wage for those industrial zones established within the scope of the Industrial Zones Law No. 4737 dated 9/1/2002 that are deemed appropriate by the President according to the foreign investment density of the zone, and for qualified service centers operating in the Istanbul Finance Center upon obtaining a participant certificate). The President is authorized to determine the three and five multiples in this subparagraph, jointly or separately, down to one multiple, and to increase them up to two multiples."

ARTICLE 6- The following supplementary article has been added to the Foreign Direct Investment Law No. 4875 dated 5/6/2003.

"Qualified service center

SUPPLEMENTARY ARTICLE 1- A qualified service center refers to capital companies established to provide services to a related company or group of companies that are actively operating in at least three different countries and to carry out the activities specified in the second paragraph, and that obtain at least 80% of their annual revenues from related companies or groups of companies abroad.

These centers provide;

- a) Financial consultancy, strategic management consultancy, risk management, cash and liquidity management, funding and borrowing transactions, investment and capital structure planning, budgeting, financial reporting and analysis, international accounting and compliance, auditing, digital transformation and technology consultancy, investment and data analysis, legal consultancy (legal consultancy relating to domestic activities or Turkish law, only obtained from a lawyer or a lawyers' partnership that may provide services within the scope of the Attorneyship Law No. 1136 dated 19/3/1969), promotion, brand management, human resources and training services, as well as the coordination and management service relating to these services,*
- b) The coordination and management service relating to activities such as sales, after-sales support, technical support, research and development, outsourcing, testing of newly developed products, and laboratory services.*

The employees who directly perform the services within the scope of the second paragraph and who are outside of support personnel are qualified service personnel.

The Ministry of Industry and Technology is authorized to determine the procedures and principles relating to the application of this article, after obtaining the opinion of the Ministry of Treasury and Finance and the Ministry of Trade."

ARTICLE 7- Subparagraph (i) of the first paragraph of Article 10 of the Corporate Tax Law No. 5520 dated 13/6/2006 has been amended as follows, and the following subparagraph has been added to the paragraph.

"i) 95% of the earnings obtained from the sale abroad, without bringing into Turkey, of goods purchased from abroad, or from the intermediation of [...] purchases and sales taking place abroad (this rate shall be applied as 100% for those industrial zones established within the scope of the Industrial Zones Law No. 4737 dated 9/1/2002 that are deemed appropriate by the President according to the foreign investment density of the zone, and for institutions operating in the Istanbul Finance Center Zone upon obtaining a participant certificate in accordance with the provisions of the Istanbul Finance Center Law No. 7412 dated 22/6/2022).

In order to benefit from this deduction, it is required that the earnings have been transferred to Turkey by the date on which the annual corporate tax declaration relating to the accounting period in which the earnings were obtained must be filed, and that the seller and buyer of the goods relating to the intermediation activity are not in Turkey. The President is authorized to reduce the rates in this subparagraph down to zero, and to increase them up to 100%."

"j) 95% of the earnings obtained from abroad exclusively within the scope of these activities by institutions operating as qualified service centers within the scope of the Foreign Direct Investment Law No. 4875 dated 5/6/2003 (this rate shall be applied as 100% for those industrial zones established within the scope of Law No. 4737 that are deemed appropriate by the President according to the foreign investment density of the zone, and for institutions operating as qualified service centers in the Istanbul Finance Center Zone upon obtaining a participant certificate in accordance with the provisions of Law No. 7412).

This deduction shall be applied, provided that the earnings are transferred to Turkey by the date on which the annual corporate tax declaration relating to the accounting period in which the earnings were obtained must be filed, for twenty accounting periods starting from the accounting period in which the qualified service center commenced operations. The President is authorized to reduce the rates in this subparagraph down to 50%, and to increase them up to 100%."

ARTICLE 8- The eighth paragraph of Article 32 of Law No. 5520 has been amended as follows.

"(8) The corporate tax rate shall be applied as 12.5% to the earnings obtained exclusively from production activities by institutions that hold an industrial registry certificate and are actually engaged in production activity, and to the earnings obtained exclusively from these production activities by institutions engaged in agricultural production activity. For earnings benefiting from the reduced rate within the scope of this paragraph, no separate reduction shall be applied within the scope of the seventh paragraph."

ARTICLE 9- In subparagraph (b) of the second paragraph of Article 32/C of Law No. 5520, the expression "(g) and (h)" has been amended as "(g), (h), (i) and (j)", and the following subparagraph has been added to the paragraph.

"d) The earnings deduction set out in subparagraph (a) of the first paragraph of Article 6 of Law No. 7412."

ARTICLE 10- The following provisional article has been added to Law No. 5520.

"PROVISIONAL ARTICLE 19- (1) In order to increase voluntary tax compliance, money, gold, foreign currency, securities and other capital market instruments located abroad shall be reported to banks or intermediary institutions by natural or legal persons until 31/7/2027.

(2) The assets reported pursuant to the first paragraph must be transferred, within two months from the date the report is made, to accounts opened in their names at banks or intermediary institutions in Turkey, or those brought physically from abroad must be deposited into these accounts. The fact that physically brought assets have been brought into the country shall be documented with the documents relating to the declaration to be made to the Customs Administration. The Customs Administration shall report the declarations it receives within this scope to the Revenue Administration by the end of the month following the month in which they were received.

(3) Money, gold, foreign currency, securities and other capital market instruments owned by income or corporate taxpayers and located in Turkey but not included in the statutory book records, shall be reported to banks or intermediary institutions until 31/7/2027. It is mandatory that the reported assets be documented by being deposited into banks or intermediary institutions as of the reporting date.

(4) The assets reported within the scope of the first and third paragraphs shall be recorded in the statutory books as of the reporting date by taxpayers who keep books pursuant to Law No. 213. Taxpayers who keep books according to the balance sheet basis shall open a special fund account on the liabilities side for the values they have recorded in their statutory books pursuant to the provisions of this article. This fund account may not be withdrawn from the enterprise unless two years have passed from the reporting date, may not be used for any purpose other than addition to capital, and in the event of liquidation of the enterprise it shall not be taxed. Taxpayers who keep books according to the self-employment earnings book and the business account basis shall additionally show the said values in their books. These assets shall not be taken into account in determining the period earnings, and on the condition that two years have passed from the reporting date, they may be withdrawn from the enterprise without being taken into account in determining the taxable earnings and the distributable earnings for institutions.

(5) Those who do not have income or corporate tax liability shall benefit from the provisions of the article without the conditions set out in the fourth paragraph being sought, in the event that they bring their reported assets into Turkey within the period set out in the second paragraph, and document their domestic assets by depositing them into banks or intermediary institutions as of the reporting date.

(6) Banks and intermediary institutions shall declare the tax they collect in advance at the rate of 5% over the value of the assets, from the person making the report regarding the assets reported to them, with a declaration to the tax office to which they are affiliated, in their capacity as tax responsible party, by the evening of the fifteenth day of the month following the report, and shall pay it within the same period.

However, the tax rate shall be applied as 0% if it is committed that the reported asset will be held in time deposit accounts, in government domestic borrowing securities and lease certificates issued within the scope of Law No. 4749, or in venture capital investment funds for at least five years; 1% if it is committed to be held for at least four years; 2% if it is committed to be held for at least three years; 3% if it is committed to be held for at least two years; and 4% if it is committed to be held for at least one year. For reports to be made from 1/1/2027 until 31/7/2027 (including this date), these rates shall be increased by half a point. In the event that the date 31/7/2027 is extended by authority, the tax rate for reports to be made after this date shall be applied with an additional increase of half a point, with a total increase of 1 point. No stamp duty shall be collected on the undertakings to be given within the scope of this paragraph.

(7) The tax paid within the scope of this article may in no way be recorded as an expense and may not be offset against any other tax. Losses arising from the disposal of the assets subject to the report shall not be accepted as an expense or deduction for income or corporate tax application purposes.

(8) No tax examination and no tax assessment shall be made in any way regarding the amounts corresponding to the reported assets. However, measures required to be taken pursuant to other legislation shall not be affected by this regulation. In the event that it is determined that the tax base difference found as a result of tax examinations that started for other reasons and of appraisal commission decisions arose due to the assets reported within the scope of the article, and the amount of the reported asset is equal to or greater than the tax base difference found, no assessment shall be made regarding the tax base difference. In the event that, despite the determination that the tax base difference found arose due to the reported assets, it is greater than the said asset amounts, tax assessment shall be made only over the difference amount. In the event that a tax base difference is determined for reasons other than the assets subject to the report as a result of tax examinations or appraisal commission decisions, assessment shall be made without the amounts reported within the scope of this article being offset against the tax base difference found.

(9) In the events that, although reported pursuant to the first paragraph, the reported assets are not brought into Turkey within two months from the date the report is made or are not transferred to an account to be opened at banks or intermediary institutions in Turkey; or although reported pursuant to the third paragraph, are not deposited into banks or intermediary institutions within the period specified in the same paragraph; as well as the failure to pay on time the taxes assessed regarding the reported amounts, the failure to comply with the undertakings, and the failure to fulfill the other conditions set out in this article, the provision of the eighth paragraph may not be benefited from. In addition, the taxes not accrued on time shall be collected together with late payment interest, without the application of a tax loss penalty. The provision of the eighth paragraph shall also not be applied for the assessments to be made as a result of the said examination or appraisal commission decisions due to the report made within the scope of this article after the date on which the tax examination was commenced or the matter was referred to the appraisal commission. The failure to pay the accrued tax on its due date shall not constitute an obstacle to the follow-up and collection of the tax principal together with the late payment surcharge pursuant to Law No. 6183. Taxes that have been collected shall not be refunded or returned.

(10) After the reporting period ends, no correction may be made regarding the reports.

(11) The President is authorized to extend the date 31/7/2027, in periods each not exceeding six months from the end date, up to one year; the Ministry of Treasury and Finance is authorized to determine the matters relating to the bringing of the assets within the scope of this article into Turkey and their reporting and inclusion in the enterprise, the form on which the report and declaration shall be based, the information and documents to be used in the application of the article, and the procedures and principles relating to the application."

ARTICLE 11- The following paragraphs have been added to Article 3 of the Law No. 5746 on the Support of Research, Development and Design Activities dated 28/2/2008.

"(15) In the conditional capital increases that non-publicly held companies holding a techno-entrepreneurship badge given by the Ministry of Industry and Technology will make based on convertible-to-share debt agreements, the provisions of the Turkish Commercial Code No. 6102 dated 13/1/2011 relating to conditional capital increase shall not apply. The procedures and principles of the conditional capital increases of the companies within this scope shall be determined by the Ministry of Industry and Technology upon the opinion of the Ministry of Trade.

(16) Companies established and operated by entrepreneurs who have qualified to become incubation entrepreneurs within the scope of Law No. 4691, in conformity with the digital company definition to be determined by the Ministry of Industry and Technology, shall be exempt, for up to three years as of the date of establishment, from the fee and dues payments defined in Article 24 of the Law No. 5174 on the Union of Chambers and Commodity Exchanges of Turkey and on Chambers and Commodity Exchanges dated 18/5/2004."

ARTICLE 12- In the first sentence of the second paragraph of Article 6 of the Istanbul Finance Center Law No. 7412 dated 22/6/2022, the expression "of financial institutions that have obtained a participant certificate" has been amended as "of the participants", and the following sentence has been added to the paragraph.

"The exemption set out in subparagraph (20) of the first paragraph of Article 23 of the Income Tax Law No. 193 dated 31/12/1960 shall not be applied to the personnel of qualified service centers who benefit from this exemption."

ARTICLE 13- In the first paragraph of provisional Article 1 of Law No. 7412, the expression "2031" has been amended as "2047", and in its second paragraph the expression "five" has been amended as "twenty".

ARTICLE 14- Of this Law;

- a) Article 4 shall enter into force on its date of publication, to be applied to those deemed to have settled in Turkey as of 1/1/2026,*
- b) Articles 7 and 9 shall enter into force on their date of publication, to start from the declarations required to be filed as of 1/7/2026 and to be valid for the corporate earnings relating to the taxation period starting as of 1/1/2026 (for institutions assigned a special accounting period, the accounting period starting as of 1/1/2026),*
- c) Article 8 shall enter into force on its date of publication, to be applied to the earnings obtained in the year 2027 and the following taxation periods, and for institutions subject to a special accounting period, to the earnings obtained in the special accounting period starting in the calendar year 2027 and the following taxation periods,*
- ç) Its other articles shall enter into force on their date of publication.*

ARTICLE 15- The President shall execute the provisions of this Law.

3/6/2026